

SOLVED PRACTICE WORKBOOK

Concept of the Constitution - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



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Concept of the Constitution - Solved Practice Workbook

BASIC MCQS / REMEDIATION

Original MCQs 1-36 - Broad Coverage

OM1. Which definition is most complete?

- A. A constitution creates, allocates and limits public power while identifying the political community and governing goals.
- B. A constitution is merely a political manifesto.
- C. A constitution is only a catalogue of rights.
- D. A constitution is every law passed by Parliament.

Answer: A

Explanation: It performs constitutive, restraining, identity and change-management functions.

OM2. What distinguishes constitutionalism from possession of a constitution?

- A. It exists whenever rulers publish institutions.
- B. Constitutionalism requires effective limits, accountability, rights and remedies against arbitrary power.
- C. It requires the longest possible text.
- D. It rejects all government discretion.

Answer: B

Explanation: A document can exist without limited government.

OM3. What is constituent power?

- A. Every exercise of executive power.
- B. Ordinary delegated rule-making.
- C. Authority that founds or fundamentally reconstitutes the constitutional order.
- D. Only judicial interpretation.

Answer: C

Explanation: Constituted organs derive authority from the order thus created.

OM4. Which statement best describes Article 368 power?

- A. It is ordinary legislation with no special procedure.
- B. It is unlimited original popular sovereignty.
- C. It belongs exclusively to courts.
- D. It is a special amending power exercised by a constituted Parliament and limited by basic structure.

Answer: D

Explanation: Special power does not make Parliament legally absolute.

OM5. What does a written or codified classification test?

- A. Whether core constitutional rules are consolidated in authoritative text or texts.
- B. Whether courts review legislation.
- C. Whether amendment is difficult.
- D. Whether government is federal.

Answer: A

Explanation: Form of sources is distinct from rigidity or federalism.

OM6. Why is the UK Constitution better called uncoded than unwritten?

- A. Only custom binds Parliament.

- B. Its rules are dispersed across written statutes, cases, conventions and works rather than absent from writing.
- C. It has no constitutional law.
- D. Courts may amend every statute.

Answer: B

Explanation: Uncodified does not mean wholly oral.

OM7. Which statement about rigidity is correct?

- A. Every written constitution is rigid.
- B. Judicial review determines rigidity.
- C. Rigidity concerns whether constitutional change requires a procedure more demanding than ordinary legislation.
- D. Every federal constitution uses one amendment rule.

Answer: C

Explanation: Rigidity is a separate analytical axis.

OM8. Why is India described as mixed in amendment design?

- A. Parliament may amend by executive order.
- B. All amendments require referendum.
- C. Every provision uses Article 368 ratification.
- D. Different provisions use simple majority, special majority, or special majority plus State ratification.

Answer: D

Explanation: Difficulty is matched to constitutional importance.

OM9. What is the central federal-unitary distinction?

- A. Federalism constitutionally divides protected authority between levels; a unitary order ultimately centralises legal authority.
- B. Unitarism forbids local government.
- C. Federalism means equal population among units.
- D. Federalism always requires a presidential executive.

Answer: A

Explanation: Territorial distribution is independent of executive form.

OM10. Which description of India is safest?

- A. Confederal because States are sovereign.
- B. Federal in constitutional division with significant centralising features.
- C. Purely unitary in law.
- D. Federal only during emergencies.

Answer: B

Explanation: A qualified synthesis avoids false binaries.

OM11. What is a procedural constitution?

- A. One containing no rights.
- B. One that cannot express values.
- C. One focused primarily on institutions, decision processes and legal limits.
- D. One amended only by courts.

Answer: C

Explanation: Procedural and aspirational commitments may coexist.

OM12. Why may India also be called aspirational or prescriptive?

- A. Aspirations replace legal competence.
- B. All aspirations are directly enforceable claims.
- C. Courts alone set development policy.
- D. The Preamble, rights and Directive Principles orient institutions toward dignity, equality and social justice.

Answer: D

Explanation: Goals guide lawful institutions without erasing limits.

OM13. Which proposition captures rule of law?

- A. Public power must have legal authority, avoid arbitrariness, respect equality and remain reviewable.
- B. A majority vote cures lack of competence.
- C. Every official discretion is forbidden.
- D. Government is above ordinary law.

Answer: A

Explanation: Structured discretion can coexist with rule of law.

OM14. How does separation of powers operate in India?

- A. The judiciary controls all administration.
- B. Through functional differentiation and checks rather than a watertight division.
- C. Each branch has no contact with another.
- D. Parliament cannot perform any adjudicatory function.

Answer: B

Explanation: Ram Jawaya rejects a rigid imported model.

OM15. What makes government limited?

- A. Election victory creates plenary power.
- B. Only the executive faces limits.
- C. Every organ acts within competence, rights, procedure, structural checks and review.
- D. Courts are legally sovereign.

Answer: C

Explanation: Constitutional supremacy limits all constituted institutions.

OM16. What is constitutional accountability?

- A. Absence of institutional independence.
- B. Ministerial control of every judgment.
- C. Only criminal punishment.
- D. Answerability through responsibility, scrutiny, reasons, elections, audit and judicial remedies.

Answer: D

Explanation: Accountability uses multiple legal and political channels.

OM17. What is a legal constitution model?

- A. Enforceable higher law, rights and judicial review supply principal restraint.
- B. Only conventions restrain power.
- C. All political questions become justiciable.
- D. Elections invalidate constitutional text.

Answer: A

Explanation: Legal control remains complemented by political accountability.

OM18. What is a political constitution model?

- A. Courts possess constituent power.
- B. Elections, Parliament, conventions and public accountability provide major restraints.
- C. There is no constitutional law.
- D. Rights are logically impossible.

Answer: B

Explanation: Political constitutionalism need not deny all legal limits.

OM19. How does India combine legal and political constitutionalism?

- A. Conventions automatically override Articles.
- B. Parliament is legally unlimited.
- C. Supreme enforceable text coexists with parliamentary responsibility, elections, conventions and federal bargaining.
- D. Courts govern through confidence votes.

Answer: C

Explanation: Neither legalism nor electoralism alone explains the order.

OM20. What is a constitutional convention?

- A. A constitutional amendment by usage.
- B. A judicial decree without reasons.
- C. Any repeated administrative habit.
- D. A politically obligatory practice guiding legal powers but not automatically enforceable as law.

Answer: D

Explanation: Importance and legal enforceability are distinct.

OM21. What is popular sovereignty in India?

- A. Legitimate authority originates in the people and is exercised through the constitutional order.
- B. Every opinion poll is legally binding.
- C. Parliament is sovereign in the British sense.
- D. A temporary majority may abolish all limits.

Answer: A

Explanation: Popular authorship operates institutionally.

OM22. Why is Parliament not sovereign in the classic British sense?

- A. Courts may legislate without limits.
- B. Its legislative and amending powers are conferred and limited by a supreme Constitution.
- C. It cannot enact ordinary laws.
- D. States may veto every Union law.

Answer: B

Explanation: Democratic centrality is not legal omnipotence.

OM23. What is constitutional legitimacy?

- A. Force plus administrative efficiency.
- B. Text alone regardless of practice.
- C. Justifiable authority combining popular source, lawful procedure, rights and accountable performance.
- D. Judicial approval of every policy.

Answer: C

Explanation: Legitimacy is legal, democratic and performance-sensitive.

OM24. What does constitutional morality require?

- A. Adoption of a judge's personal morality.
- B. Uncritical obedience to social custom.
- C. Removal of all political disagreement.
- D. Fidelity to constitutional forms, roles, procedures and equal citizenship.

Answer: D

Explanation: The doctrine must remain source-anchored.

OM25. How does constitutional morality differ from popular morality?

- A. It may protect rights and minorities even when prevailing social opinion is hostile.
- B. It always defeats legislation.
- C. It has no textual foundation.
- D. It converts every value into a writ.

Answer: A

Explanation: Constitutional commitments can discipline majoritarian prejudice.

OM26. What is transformative constitutionalism?

- A. A ban on constitutional stability.
- B. Lawful use of constitutional values and institutions to dismantle entrenched hierarchy.
- C. Replacement of federal competence by aspiration.
- D. Unlimited judicial social engineering.

Answer: B

Explanation: Transformation remains competence- and remedy-bounded.

OM27. What is the strongest limit on transformative reasoning?

- A. It makes DPSPs automatically enforceable.
- B. It excludes legislative action.
- C. It must connect text, structure, institutional competence, evidence and proportionate remedy.
- D. It must preserve every inherited hierarchy.

Answer: C

Explanation: Anti-hierarchy change proceeds through constitutional legality.

OM28. What does a living Constitution mean?

- A. Judges may freely rewrite specific text.
- B. Original history is always irrelevant.
- C. Amendment becomes unnecessary.
- D. Enduring principles are applied through reasoned doctrine to new social and technological conditions.

Answer: D

Explanation: Dynamism needs a textual and institutional bridge.

OM29. What is the lesson of Puttaswamy (2017)?

- A. Privacy and dignity can apply constitutional liberty to modern informational conditions.
- B. Only property rights evolve.
- C. Technology removes all State power.
- D. Privacy is expressly listed in one Article.

Answer: A

Explanation: The case illustrates disciplined living application.

OM30. What does Kesavananda Bharati (1973) establish for this topic?

- A. Basic structure is an express schedule.
- B. Amendment is broad but cannot destroy the Constitution's basic structure.
- C. Every amendment needs a referendum.
- D. Courts may never reconsider precedent.

Answer: B

Explanation: Constitutional identity limits derivative power.

OM31. What does Minerva Mills (1980) add?

- A. Directive Principles always override rights.
- B. Parliament has original constituent sovereignty.
- C. A donee of limited amending power cannot convert it into unlimited power, and constitutional harmony matters.
- D. Judicial review is dispensable.

Answer: C

Explanation: Limited amendment itself belongs to the constitutional design.

OM32. Why is constitutional identity not a frozen code?

- A. It bars all institutional reform.
- B. It equals every existing Article.
- C. It belongs solely to conventions.
- D. It protects foundational structure while permitting extensive democratic amendment and policy change.

Answer: D

Explanation: Identity and adaptability must coexist.

OM33. Which factor best distinguishes constitution from constitutional law?

- A. The Constitution is the foundational text; constitutional law also includes authoritative doctrine, statutes and rules governing public power.
- B. Constitutional law excludes judgments.
- C. They are always exact synonyms.
- D. Ordinary law is superior to both.

Answer: A

Explanation: The legal field is wider than the document.

OM34. Which statement about sovereignty is accurate?

- A. States are internationally sovereign.
- B. India combines popular authorship with constitutional supremacy; no constituted organ is legally sovereign.
- C. The executive possesses constituent power.
- D. Courts possess popular sovereignty.

Answer: B

Explanation: Authority is distributed under higher law.

OM35. What is the best constitutionalism test during emergency?

- A. Courts must administer the emergency.
- B. Political popularity proves legality.
- C. Ask whether authority, necessity, rights, proportionality, institutional checks and review remain operative.
- D. Emergency suspends the Constitution entirely.

Answer: C

Explanation: Crisis power remains constitutional power.

OM36. Which conclusion best captures India's design?

- A. It chooses rigidity over all adaptation.
- B. It makes judges politically sovereign.
- C. It separates law from political legitimacy.
- D. It enables democratic and social change while restraining every institution through higher law.

Answer: D

Explanation: The synthesis joins authority, transformation and restraint.

Remedial MCQs 1-12 - Common Error Repair

RM1. A student equates written with rigid. What repairs the error?

- A. Treat codification and amendment difficulty as separate classification axes.
- B. Classify by judicial review alone.
- C. Assume all written texts are entrenched.
- D. Call every flexible order unwritten.

Answer: A

Remedial explanation: One axis cannot decide another.

RM2. A student calls the UK Constitution wholly unwritten. What is correct?

- A. Treat conventions as the only source.
- B. Call it uncoded because statutes, cases and conventions are dispersed across sources.
- C. Call it a federal written text.
- D. Say it has no legal Constitution.

Answer: B

Remedial explanation: Uncoded is the precise term.

RM3. A student says constitutionalism means obeying any constitutional text. What is missing?

- A. A presidential system.
- B. A unitary State.
- C. Effective limited government, rule of law, rights, accountability and remedies.
- D. A longer document.

Answer: C

Remedial explanation: Formal possession does not defeat arbitrariness.

RM4. A student calls Article 368 unlimited constituent sovereignty. What is the repair?

- A. Every amendment is ordinary law.
- B. The Preamble is unamendable in all respects.
- C. Courts alone may amend.
- D. Parliament exercises derivative amending power subject to basic structure.

Answer: D

Remedial explanation: Constituted power cannot become absolute.

RM5. A student treats India as purely federal. What is better?

- A. Identify federal division together with centralising constitutional features.
- B. Infer federalism from parliamentary government.
- C. Call it confederal.
- D. Ignore the Seventh Schedule.

Answer: A

Remedial explanation: Mixed design needs a qualified label.

RM6. A student invokes constitutional morality without a source. What should be added?

- A. Treat public opinion as conclusive.
- B. Tie the claim to text, structure, institutional role, rights and relevant precedent.
- C. Use personal moral intuition.
- D. Make every dispute justiciable.

Answer: B

Remedial explanation: Source discipline controls indeterminacy.

RM7. A student says transformative constitutionalism belongs only to courts. What is correct?

- A. DPSPs erase competence limits.
- B. Only amendments transform society.
- C. Courts, legislatures, executives and citizens perform distinct lawful transformative roles.
- D. Judicial orders replace public capacity.

Answer: C

Remedial explanation: Transformation is institutionally distributed.

RM8. A student equates living Constitution with free judicial updating. What repairs it?

- A. Constitutionalise preferred policy.
- B. Replace amendment with interpretation.
- C. Ignore precedent.
- D. Require a textual hook, reasoned doctrinal bridge, competence and proportionate remedy.

Answer: D

Remedial explanation: Dynamism must remain disciplined.

RM9. A student calls Parliament legally sovereign. What is the Indian position?

- A. Parliament is democratically central but legally limited by constitutional supremacy and basic structure.
- B. Parliament cannot legislate.
- C. Courts possess political sovereignty.
- D. States may nullify all Union law.

Answer: A

Remedial explanation: British parliamentary sovereignty is not transplanted.

RM10. A student says conventions are automatically enforceable. What is correct?

- A. Conventions are irrelevant.
- B. Conventions are politically important practices but become legal only through an adequate legal source.
- C. Every practice overrides text.
- D. Courts cannot consider structure.

Answer: B

Remedial explanation: Political obligation differs from legal enforceability.

RM11. A student lists Article 21 cases without analysis. How should the answer improve?

- A. Claim all welfare is immediately enforceable.
- B. Delete the textual right.
- C. Group them by procedural fairness, dignified conditions and autonomy, then state interpretive limits.
- D. Add more case names only.

Answer: C

Remedial explanation: A doctrinal trajectory earns more than a catalogue.

RM12. A conclusion says merely 'uphold constitutional values.' What is better?

- A. Treat all values as identical.
- B. Avoid a qualified verdict.
- C. Add another slogan.
- D. State which institution, source, procedure, right, check and remedy operationalise the value.

Answer: D

Remedial explanation: Executable constitutional analysis is institution-specific.

PYQS AND ANSWER PRACTICE

Exact routed PYQs with executable solutions

PYQ 1 - 2021 GS-II Q1 - 10 marks, 150 words

Question: 'Constitutional Morality' is rooted in the Constitution itself and is founded on its essential facets. Explain the doctrine of 'Constitutional Morality' with the help of relevant judicial decisions.

Model answer: Constitutional morality is fidelity to the Constitution's authorised forms, institutional roles, procedures and substantive commitment to liberty, equality and fraternity. It differs from transient social or electoral morality. In *Government of NCT of Delhi v Union of India* (2018), the Court linked it to responsible constitutional conduct and respect for the distribution of powers. In *Navtej Singh Johar* (2018), it protected equal citizenship, dignity and minority rights against popular prejudice. *S.R. Bommai* (1994) similarly illustrates how secularism and federalism restrain partisan power. The doctrine therefore disciplines both outcome and method: competence, deliberation, non-arbitrariness, minority protection and reasons. Yet it must remain anchored in identifiable text and structure; otherwise constitutional morality can collapse into a judge's personal morality.

Why this earns marks: It defines the doctrine, distinguishes social morality, uses three relevant cases and states the limiting principle.

How to improve: In 150 words, use only two cases but connect each to a distinct facet rather than listing holdings.

Compression: Definition -> constitutional facets -> NCT Delhi/Navtej -> text-and-structure limit.

PYQ 2 - 2023 GS-II Q11 - 15 marks, 250 words

Question: "The Constitution of India is a living instrument with capabilities of enormous dynamism. It is a constitution made for a progressive society." Illustrate with special reference to the expanding horizons of the right to life and personal liberty.

Model answer: A living Constitution applies enduring textual principles to circumstances the founders could not exhaustively foresee. Article 21 moved from the narrow approach in *A.K. Gopalan* to *Maneka Gandhi* (1978), where procedure had to be fair, just and reasonable and Articles 14, 19 and 21 were read together. Later doctrine recognised livelihood, legal aid, speedy trial, health, a clean environment and decisional autonomy as aspects of dignified life, while *K.S. Puttaswamy* (2017) protected privacy against technological forms of intrusion. This dynamism serves a progressive society because liberty becomes practical rather than merely protection from physical deprivation. But expansion is not limitless: courts must identify a textual and doctrinal bridge, respect institutional competence, test restrictions proportionately and craft enforceable remedies. Amendment, legislation and democratic administration remain complementary modes of constitutional development. Thus the Constitution lives through disciplined interpretation-not through judicial replacement of its text.

Why this earns marks: It illustrates an actual doctrinal trajectory, names rights generated through Article 21 and supplies a principled limit.

How to improve: Organise examples into procedural fairness, conditions of dignified life and autonomy/privacy; avoid an unanalysed catalogue.

Compression: Gopalan-Maneka shift -> dignity rights -> Puttaswamy -> interpretive limits.

PYQ 3 - 2025 GS-II Q11 - 15 marks, 250 words

Question: "Constitutional morality is the fulcrum which acts as an essential check upon the high functionaries and citizens alike." In view of the above observation of the Supreme Court, explain the concept of constitutional morality and its application to ensure balance between judicial independence and judicial accountability in India.

Model answer: Constitutional morality requires all constitutional actors to respect their assigned role, procedures, rights and the values of equal citizenship. Judicial independence protects adjudication from executive, legislative, partisan and private pressure; without it, rights and constitutional supremacy become fragile. Yet independence is decisional autonomy, not institutional immunity. Accountability follows through reasoned open judgments, precedent, appellate and review procedures, recusal, conflict disclosure, ethical standards, transparent institutional administration and the constitutionally demanding removal process. The executive or Parliament cannot use accountability to dictate outcomes, while courts cannot invoke independence to avoid reasons, fair allocation of cases or standards of integrity. Appointment reform should therefore protect decisional independence while improving published criteria, diversity and procedural transparency. Constitutional morality supplies the balance: insulation from outcome control, combined with answerability through constitutional procedure.

Why this earns marks: It addresses both sides of the balance and converts an abstract doctrine into mechanisms specific to the judiciary.

How to improve: Separate adjudicatory accountability from administrative accountability and avoid implying that popular review may reverse judgments.

Compression: Doctrine -> independence purpose -> accountability tools -> two red lines -> balance.

Original solved Mains practice

M1 - 10 marks, 150 words

Question: A constitution constitutes power; constitutionalism restrains it. Explain.

Model solution: A constitution identifies the political community, creates institutions, allocates legislative and executive competence, establishes procedures, protects rights and provides methods of change. Constitutionalism asks whether those created powers remain limited, non-arbitrary and accountable. In India, Articles 79 and 124 create Parliament and the Supreme Court, while Articles 13, 14, 32 and 226 restrain and review public action; parliamentary responsibility, federalism and Article 368 add political and structural controls. An authoritarian state may therefore possess a constitutional document without effective constitutionalism.

Why this earns marks: It uses the constitutive/restraining distinction and concrete Indian anchors. **How to improve:** Conclude with the implementation gap between text and institutional practice. **Compression:** Four functions -> four restraints -> authoritarian-document trap.

M2 - 15 marks, 250 words

Question: Constitutional classifications illuminate dimensions but become misleading when treated as mutually exclusive boxes. Discuss with reference to India.

Model solution: Written/uncodified concerns consolidation of sources; rigid/flexible concerns amendment difficulty; federal/unitary concerns territorial power; parliamentary/presidential concerns executive-legislative relations. One axis does not decide another: the uncodified UK constitution contains written laws; a written constitution need not be uniformly rigid; federalism does not imply presidential government. India is enacted and codified, but evolves through amendment, precedent and convention. It is mixed in rigidity, federal with centralising features, and parliamentary under a legally supreme Constitution with judicial review. Classification is therefore an analytical map, not a verdict on the whole constitutional order.

Why this earns marks: It defines four independent axes and locates India with qualifications. **How to improve:** Use a two-column axis/test table before the Indian synthesis. **Compression:** Four axes -> three false inferences -> mixed Indian design.

M3 - 15 marks, 250 words

Question: Examine constituent power and constituted power in the Indian constitutional order.

Model solution: Original constituent power founds a constitutional order in the name of the people; constituted powers are institutions created and limited by that order. Parliament's Article 368 power is special constituent or amending power, distinct from ordinary legislation, but Parliament remains a constituted institution. *Kesavananda Bharati* (1973) therefore permits wide amendment while barring destruction of basic structure. *Minerva Mills* (1980) rejects the attempt of a limited donee to convert its power into an unlimited one. Courts enforce that limit but do not acquire original constituent sovereignty. Popular authority, amendment and judicial review thus form a chain of constitutional supremacy rather than competing claims to absolute power.

Why this earns marks: It avoids calling Article 368 either ordinary legislation or unlimited sovereignty. **How to improve:** Distinguish original founding authority from derivative amending power explicitly. **Compression:** Founder -> constituted organs -> Article 368 -> two cases -> no sovereign organ.

M4 - 15 marks, 250 words

Question: Analyse the interaction of legal, political and aspirational constitutionalism in India.

Model solution: The legal dimension supplies supreme rules, rights, competence and remedies. The political dimension supplies elections, confidence, legislative scrutiny, conventions, federal bargaining and public justification. The aspirational dimension, expressed through the Preamble, rights and Directive Principles, directs democratic action toward dignity, equality and social justice. Legalism without politics may weaken democratic legitimacy; electoral politics without higher-law limits may become majoritarian; aspiration without competence and capacity may remain symbolic. India's design requires interaction: enforceable rights provide a floor, responsible government chooses policy, and social commitments orient change within federal and fiscal limits.

Why this earns marks: It defines each dimension and analyses the failure produced by isolating it. **How to improve:** Add one institution or constitutional provision under each dimension. **Compression:** Three dimensions -> three isolated failures -> integrated Indian synthesis.

M5 - 20 marks, 300 words

Question: Critically evaluate constitutional morality as a restraint on majoritarian and institutional power.

Model solution: Constitutional morality denotes fidelity to authorised forms, procedures, institutional roles and equal citizenship, not conformity to prevailing social morality. It restrains majoritarianism by protecting dissent and minorities and restrains institutions by requiring competence, deliberation, reasons and respect for checks. *Government of NCT of Delhi* (2018) links it to responsible institutional conduct; *Navtej Singh Johar* (2018) opposes constitutional equality to social prejudice; *S.R. Bommai* (1994) shows structural values limiting partisan central action. Its strength is that formal legality cannot mask bad-faith or anti-constitutional use of power. Its risk is indeterminacy: detached from text, structure and precedent, it may authorise judicial moral preference. The disciplined use is source-first, role-specific

and remedy-conscious.

Why this earns marks: It presents purpose, institutional operation, cases, strength, risk and limiting method. **How to improve:** Distinguish constitutional morality from morality of the Constitution-maker and public morality.

Compression: Definition -> two restraints -> three cases -> indeterminacy -> source-first limit.

M6 - 20 marks, 300 words

Question: Transformative constitutionalism seeks social change without abandoning constitutional legality. Discuss.

Model solution: Transformative constitutionalism treats the Constitution as a project for overcoming entrenched status hierarchies through dignity, liberty, equality, fraternity and social justice. Abolition of untouchability, affirmative action, enforceable rights and Directive Principles reveal this transformative design. *Navtej Singh Johar* (2018) and *Joseph Shine* (2018) use equal citizenship and autonomy to dismantle inherited legal subordination. Transformation nevertheless operates through constitutional competence, evidence, fair procedure and proportionate remedies. Courts can invalidate hierarchy-producing law and interpret open rights, but legislatures and governments retain indispensable roles in redistribution, services and institutional capacity. The doctrine is therefore neither static originalism nor unlimited judicial updating; it is lawful anti-hierarchy change across institutions.

Why this earns marks: It links theory to text, cases, institutional division and a limiting principle. **How to improve:**

Separate anti-subordination rights adjudication from resource-dependent social transformation. **Compression:**

Values/text -> two cases -> institutional roles -> legality limit.

M7 - 15 marks, 250 words

Question: Does a living Constitution permit judges to update constitutional meaning freely?

Model solution: No. A living Constitution recognises that durable language such as liberty, equality and dignity must govern new technologies and social conditions. *Maneka Gandhi* (1978) and *K.S. Puttaswamy* (2017) show reasoned development through text, structure, precedent and changed circumstances. But dynamism requires a doctrinal bridge: the textual hook, constitutional purpose, institutional competence, evidence, consistency with precedent and proportionate remedy must be stated. Judicial interpretation cannot erase specific text, assume legislative or constituent power, or treat preferred policy as constitutional command. Amendment and democratic lawmaking remain parallel channels of change.

Why this earns marks: It answers the question directly and supplies both method and limits. **How to improve:**

Contrast application of an enduring principle with alteration of a specific rule. **Compression:** Qualified no -> two cases -> six controls -> democratic-change channels.

M8 - 15 marks, 250 words

Question: Explain how sovereignty and legitimacy are reconciled under India's Constitution.

Model solution: "We, the People" expresses popular authorship and democratic legitimacy, but popular sovereignty operates through a supreme constitutional framework. Parliament possesses central democratic authority yet is not legally sovereign in the British sense; executive power is responsible and reviewable; courts authoritatively interpret but do not possess political sovereignty; States retain constitutionally protected fields. Elections renew representative authority, while rights, federalism, procedure, judicial review and limited amendment prevent a temporary majority from claiming unlimited power. Legitimacy therefore combines source in the people, lawful institutional process, rights-respecting outcomes and continuing public accountability.

Why this earns marks: It distinguishes four sovereignty claims and synthesises legal and democratic legitimacy.

How to improve: Add Article 368/basic structure as the test of constitutional supremacy. **Compression:** People -> Parliament/executive/courts/States -> elections plus limits -> legitimacy.